

preparation, or delay the trial, the court notes that the court has recently granted the motion to continue trial.

Accordingly, the motion is granted.

Defendant City of Lincoln shall file and serve the first amended answer by September 4, 2026.

8. S-CV-0055232 Cunningham, Laura v. Silverstein, Karina

Plaintiff is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Motion to Advance Trial

Appearance of the parties is required on **August 25, 2026 at 8:30 a.m. in Department 32**. Department 32 is located at 10820 Justice Center Drive, Roseville, California 95678.

9. S-CV-0055382 Marx, Leroy S v. Q&D Construction

If oral argument is requested, it will be heard in **Department 32** by the Honorable Trisha J. Hirashima.

Moving party is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Motion to Substitute Plaintiff

Proposed plaintiff and successor in interest Ashley Duskin's unopposed motion is granted. If a cause of action survives death of a party, on motion "the court shall allow" substitution by the decedent's personal representative or, if none, by the decedent's successor in interest. (Code Civ. Proc., §§ 377.31 [decedent's cause of action]; 377.41 [cause of action against a decedent].) A successor in interest is defined as "the beneficiary of the decedent's estate or other successor in interest who succeeds to a cause of action or to a particular item of the property that is the subject of a cause of action." (Code Civ. Proc., § 377.11.) A person seeking to substitute into an action as a successor in interest for a deceased plaintiff must provide evidence in compliance with Code of Civil Procedure section 377.32(a).

Here, plaintiff's labor law claims are not abated by plaintiff's death and the declaration of Ashley Duskin meets the requirements of Section 377.32(a). The court finds Ashley Duskin is plaintiff Leroy S. Marx's successor in interest. Accordingly, Ashley Duskin is substituted into the case as the successor in interest for plaintiff Leroy S. Marx.

Order to Show Cause

The court on its own motion schedules this matter for an order to show cause hearing regarding settlement and/or dismissal on **October 27, 2026 at 9:00 a.m. in Department 32**. The parties are reminded that any requested dismissal of class actions must meet the requirements of California Rules of Court, rule 3.770.

10. S-CV-0055953 Safe Nation Found. v. Wildlife Heritage Found.

The demurrer to the second amended complaint is continued to **October 6, 2026 at 8:30 a.m. in Department 32** to be heard together with another motion filed in this action. No further briefing is permitted.

11. S-CV-0056073 Berg, Jill Elaine v. Berg, Brendon

Motion for Leave to File a Second Amended Complaint

Plaintiffs' unopposed motion for leave to file a second amended complaint is granted. (Coe Civ. Proc., § 473, subd. (a).) Plaintiffs shall file and serve their second amended complaint by September 4, 2026.

12. S-CV-0056213 Mora, Michael F v. Cavanaugh, Shannon G

Cross-defendant is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Demurrer to the Cross-Complaint ("XC")

Cross-defendant demurs to the second cause of action of the cross-complaint for slander of title contending it fails to allege facts sufficient to state a cause of action. (Code Civ. Proc., § 430.10, subd. (e).) Cross-complainants oppose the demurrer.

Cross-defendant's request for judicial notice is granted.

A party may demur where the pleading does not state facts sufficient to constitute a cause of action. (Code Civ. Proc., § 430.10, subd. (e).) A demurrer tests the legal sufficiency of the pleadings, not the truth of the allegations or the accuracy of the described conduct. (*Bader v. Anderson* (2009) 179 Cal.App.4th 775, 787.) The allegations in the pleadings are deemed true no matter how improbable they may seem. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604.) However, the court does not assume the truth of contentions, deductions, or conclusions of facts or law. (*Evans v. City of Berkeley* (2006) 38 Cal.4th 1, 6.) The court may only refer to matters outside the pleading that are subject to judicial notice. (*Rea v. Blue Shield of California* (2014) 226 Cal.App.4th 1209, 1223.)